

CHAPTER ONE

GENERAL OVERVIEW

The main actors in the criminal justice system discussed are the police, prosecution, and courts.

Substantive due process refers to the content or subject matter of a law. It protects people against unreasonable, arbitrary, or capricious laws or acts of government.

Due process of law has two major components. These are substantive and procedural. The former refers to the laws governing rights, duties, and liabilities. The legal provisions set a limit for their application.

Procedural due process (pertains to the means of implementing substantive d.p)

is concerned with the notice, hearing, and other procedures

(Opportunity to present a defense, an impartial tribunal & fairness) those are required before the life, liberty, or property of a person may be taken by the government.

Law is broadly divided into substantive and adjective. The latter is also divided into procedural and evidence. The substantive law defines rights, duties, and liabilities. But, its implementation calls for the adjective laws. Procedure and evidence laws are corollaries of substantive rules. Hence, criminal procedure is part of adjective laws.

The substantive justice is more of an end. But, the procedural one is mainly a means to achieve that end. Nevertheless, procedural matters may be ends in themselves. Fair trial, the right to be heard, etc are rights to be upheld for their own sake besides their instrumentality in attaining a fair result.

A criminal justice system has dual purposes. These are protection of the public against criminal harm and suspects or accused against unfair treatment along the process. depending upon the approach of the state towards the two interests, two models of criminal justice system have been developed. These are the due process model and crime control model.

The due process model is distinguished for its emphasis on the avoidance of convicting innocent. It tolerates the escape of criminals for the sake of not harming innocents. This may affect the public interest as offenders are sent free. On the contrary, the policy of the crime control model, as its name implies, is the prevention of crime. It gives lesser emphasis to the protection of the rights of a suspect or accused. There is a possibility to convict innocent persons since the major target is repressing crime.

There are two major criminal procedure systems, i.e., adversarial (accusatorial) and inquisitorial.

Systems of Criminal Procedure:

- 1) Adversarial/Accusatorial/**
- 2) Inquisitorial, and**
- 3) Mixed Systems**(combining adversarial and inquisitorial aspects)

Both systems of adjudication have the **finding of truth** as a fundamental aim, and each is guided by the principle that the guilty should be punished and the innocent left alone... The differences between the two are in their assumptions about the best way to find the truth.

In general terms, the common legal tradition uses the adversarial process, whereas the civil legal tradition follows one of inquisition.

Contrasting Adversarial and Inquisitorial Processes

1. The inquisitorial systems emphasize the screening phase of the criminal process with the idea that a careful investigation will determine factual guilt. The adversarial systems emphasize the trial phase, where the idea that complex rules of evidence to produce substantive results will ensure the defendant a fair trial.
2. The adversarial systems are much more likely to restrict the involvement of the judiciary in both the investigatory and adjudicatory process. The direct involvement of the judge in inquisitorial systems contrasts with his or her more indirect involvement in adversarial systems.
3. Because the inquisitorial system assumes that all involved persons are seeking the truth, the defendant is expected (though not required) to be cooperative. That cooperation

includes supplying information to investigators and answering questions at trial. The adversarial systems, on the other hand, neither expect nor require the defendant to assist investigators. The burden of proof is on the prosecutor, who assumes that the defendant will maintain silence.

4. The role of the judge in adversarial proceedings is primarily one of referee. The attorneys develop and present their respective cases, and then a jury decides between the two versions of the facts. The court in an inquisitorial system is another investigator with the added power of being able to decide the case. The judges ask most of the questions and develop the facts while the attorneys exist more to argue the interpretation that the court should give those facts...

Fundamental criminal procedure principles

- ✓ presumption of innocence
- ✓ freedom from self-incrimination
- ✓ fair trial
- ✓ speedy trial
- ✓ public trial
- ✓ the right to defence counsel
- ✓ Equality
- ✓ Legality
- ✓ rule of law
- ✓ due process of law, etc.

These are universal values to be incorporated in any modern criminal justice system. The FDRE Constitution and other laws have directly or indirectly incorporated these basic principles of modern criminal justice system.

History of Ethiopian Criminal Procedure

In Ethiopia, the procedural laws had been developed before the substantive laws. Before the enactment of the CPC, the criminal procedure was guided by traditional rules. There were mechanisms to detect and judge criminals. The methods include *leba shay* and *afersata*. But,

these techniques were exposed to abuse. Their value for that stage of development can not be underestimated.

Modern criminal justice has appeared with the enactment of the CPC. The code has been mainly influenced by common law legal system. But, it has also civil law inclination. It is a precise code. As a result it is open to interpretation.

There were three types of devices of crime investigation or detection under the old procedural law of Ethiopia. These were known as *leba shay*, *afarsata*, and the investigations undertaken by the “market guards” (*arada zabagna*) and secret guards (*mist’ir zabagna*).

afarsata was a device by which all male members of a community would assemble to identify an offender

CHAPTER TWO

SETTING JUSTICE IN MOTION: IN TAKE PROCEDURES AND INVESTIGATIVE ACTIVITIES

The operation of criminal procedure begins with the *reception of information* about the commission of a crime. The information could reach the police through different channels. These are *complaint, accusation* and the occurrence of *flagrant offences*. They serve as condition **precedents to set criminal justice in motion**. Once the criminal justice is triggered, it is often followed by investigation to substantiate the case with evidence to prove guilt. Arresting the suspect could also be made whenever the law requires or circumstances justify.

The investigation may be made before the arrest of a suspect or after the arrest. The police are supposed to hear witnesses and gather other real evidences like exhibit, finger print, blood test, etc. The gathering of evidence sometimes requires search and seizure

Complaint, Accusation, and Flagrant Offences

Prosecuting Criminal Offences Punishable only upon Complaint

“offences of a predominantly nature which cannot be prosecuted except upon a formal accusation or request, or a complaint in the strict sense of the term, of the aggrieved party or those claiming under him.”

Hence the principle that criminal offences are prosecuted and punished, on behalf of the public, by the state acting as the agent of the citizens. There are offences, however, which do not jeopardize the order, peace and security of the state and its inhabitants but are contrary solely to the rights of a given individual. There are offences of a purely private or personal character, the effect of which does not extend beyond the individual there by injured. In such cases, the state, though it is generally responsible for instituting criminal proceedings whether or not the victim of the offence agrees thereto, will not carry out this duty unless the victim indicates affirmatively that he wants the offender to be prosecuted.

The prior consent of the injured party is required, firstly, because public interests are not at risk as the offence does not endanger the society at large, and secondly, because the institution of proceedings, against the will of the injured party, might often be more harmful to him than the commission of the offence, for it might draw the attention of society to certain facts, such as his spouse's unfaithfulness or his child's dishonesty, which are precisely what he does not want known publicly. In these situations, the institution of criminal proceedings is conditional upon a complaint first being made by the individual concerned. Where he makes a request to this effect, the state then acts, not on behalf of the public, but as the custodian of his rights for the purpose of prosecution and punishment insofar as this is possible.

Many provisions in the special part of the PC prescribe that "whosoever... is punishable, on complaint, with..." these are Articles 388(2) (destruction of documents belonging to a relative); 407 (breach of professional secrecy); 409 (disclosure of scientific, industrial or trade secrets); 539(1) common willful injury not in aggravating circumstances); 543(3) (common injury caused by negligence); 544 (assault); 552 (intimidation); 553 (threat of accusation or disgrace); 555 (deprivation of powers of decision); 563 (1) (ascendant abducting a child); 570 (violation of the right of freedom to work); 573 (violation of the privacy of correspondence); 587 (prescribing that all offences against the honour are punishable on complaint; see, however, Articles 256, 276 and 278); 593 (sexual offences without violence against women in distress); 596 (seduction); 612 (indecent publicity); 614 (fraud and deceit in marriage); 618 (adultery); 625 (failure to maintain one's family); 629 (prescribing that all offences against property committed within the family are punishable on complaint if they do not involve violence or coercion); 632 (abstraction of things

jointly owned); 643 (misappropriation); 644 (unlawful use of the property of another); 645 (misappropriation of lost property), 649 (damage to property caused by herds); 650 (1) (disturbance of possession not in aggravating circumstances); 653 (damage to property in aggravating circumstances); 661 (fraudulent exploitation of public credulity); 665 (incitement to speculation); 666 (incitement of minors to carry out prejudicial transactions); 671-676 (offences against intangible rights); 680 (fraudulent insolvency); 681 (irregular bankruptcy) and 721 (1) (a) (petty offences of a private nature).

Whenever an offence is committed in violation of any of the above mentioned provisions, no action may be taken except at the initiative of the person qualified under the law of making the necessary complaint. If the offence is a flagrant one, the offender may not, it seems, be arrested without a warrant unless a complaint is first made.

It must be clear that the sole purpose and effect of the complaint is to enable the public prosecutor to institute proceedings. It may not be held that offences punishable on complaint are offences which may be prosecuted only by the injured party.

as the public prosecutor prosecutes only because the injured party has expressly requested him to do so, it follows that, where the complainant declares that he no longer wants the offender to be prosecuted, i.e., where he withdraws his complaint as he entitled to do under Article 221 of the PC, the public prosecutor is compelled to withdraw the charge. The accused may not, as a rule, object to such withdrawal and demand that the case should be carried forward.

If the public prosecutor refuses to institute proceedings with respect to an offence punishable on complaint, up on to justified reasons.the victm should be authorized for private prosecution by certificate issued by z pp.

The effect of a certificate having been issued is that the injured party or his representative, as defined in Article 47 of the CPC, may institute proceedings in the court mentioned in the certificate. He will frame a charge, and the case will then proceed in accordance with the provisions of Article 150-153 of the CPC.

The above explanations are without prejudice to the provisions of Article 48 of the CPC. According to Article 48 of the CPC, a **private prosecution may be stayed at any stage** thereof **at the request of the public prosecutor**, if it appears in the course of such prosecution that

- **The accused committed a more serious offence than that for which the certificate had been issued** under Article 44 (1) of the said code. An example would be if the certificate were issued with regard to an offence under Article 664 of the PC (unlawful use of the property of another) and it were disclosed during the trial that the accused actually had the intention of obtaining an unlawful enrichment and should, therefore, have been charged with an offence of theft in violation of Article 630 of the PC. In this respect,
- **The offence is not punishable on complaint.**

it must be clear that a stay of proceedings **should not be ordered** whenever **new evidence is produced and** the public prosecutor declares that had he known such evidence before, he would not have refused to prosecute on the ground of insufficiency of evidence but would himself have instituted public proceedings. It seems that a stay of proceedings should be ordered **only** when it appears that the offence actually committed is such that the public prosecutor could, in no case, have issued a certificate under Article 44(1) of the CPC because that **offence is not punishable on complaint**. Although the said Article 48 does not expressly so provide, one should consider that after a certificate has been issued, the public prosecutor may not interfere in private proceedings unless the case clearly is not one in which only private interests are involved.

NB:

- The criminal justice process has a beginning and end. The condition precedents for setting the criminal justice in motion are **complaint**, **accusation** and **flagrant offences**. These intake mechanisms are related to the nature of crimes. Thus, the beginning of the criminal justice process demands complaint, accusation, and flagrant offense. The law has also mechanisms to prevent false accusation and complaint against innocent persons.
- Under the Ethiopian criminal justice system, in principle, every crime concerns the public and is the responsibility of law enforcement organs to investigate and prosecute whenever they received information indicating the commission of offenses. However,

exceptionally, some crimes are investigated or prosecuted only when the injured person requests criminal proceeding to start.

- In addition, providing information concerning the commission of a crime is a right. But, in exceptional cases provided in the law, it is a duty to inform the commission of such kind of offenses to the authorities.

Summons and Arrest

- Art 16-21, 26, 32, FDRE Constitution & Art 19-21, 49-59, CPC

Articles: Some Aspects of Ethiopian Arrest Law: the Eclectic Approach to Codification

The law of arrest: importance

The immediate efficiency and utility of any system of criminal procedure must be measured according to two goals, each equally important to society: the extent to which the system facilitates the enforcement of the penal law, by bringing offenders to speedy justice, and the extent to which innocent citizens are left undisturbed.

But, given these aims, it is clear that in no system will the selection process be completely accurate-some offenders will be left undisturbed, and some innocent persons will be mistakenly selected and subjected to the unpleasant ordeal of criminal proceedings.

In Ethiopian law, we find that it is doubtful whether any post arrest judicial screen exists short of the trial itself. The code is not very clear whether the court before which an accused is brought immediately after his arrest has the power to pass on the grounds for the arrest and to order the discharge of the accused should it find them inadequate; and it is fairly clear that the preliminary inquiry court lacks that power. Thus, whether legal case exists or not, once in custody the innocent accused in Ethiopia possibly has no opportunity to win a discharge at any time prior to the trial itself, should the public prosecutor decide to institute proceedings. In between years may lapses.

Arrest by court warrant

The ordinary procedure for issuing warrants is prescribed by Article 53 and 54. Although any court may issue a warrant, its power may be exercised only upon the application of an investigating police officer. And

Art. 54. - When warrant of arrest to be issued.

A warrant of arrest shall only be issued where the attendance of a person before the court is absolutely necessary and cannot otherwise be obtained.

(Before requesting an arrest warrant first summon should be given to z person by z police for polite appearance before crt) As a general rule, then, the court may not issue a warrant of arrest unless the accused has already been summoned without success. In case of summon one will come into custody **“voluntarily” rather than by force**

There are, however, cases imaginable in which the court would be justified in issuing an arrest warrant even though the summons method had not been tried. for example; if z person would likely to flee z empire when summon is served.

Both in Anglo- American and continental systems summons, like an arrest warrant, is issued by the courts, in Ethiopia the power is given to the police themselves. The only limitation imposed by Article 25 is that the investigating police officer should have “reason to believe,” that the accused has committed an offence.

It is submitted, therefore, that both for the sake of internal consistency and in order to safeguard the rights of citizens the code should be amended so as to transfer the summons power from the police to the courts.

It is not supposed “automatically” to issue warrants to arrest whomever the police suspect of an offence. It is a fair inference that, as a minimum standard, the court must be satisfied that there is sufficient evidence to believe that the suspected person has probably committed the offence.

The police to summon a suspect to appear, that there be “reason to believe” that he has committed an offence.

Arrest without warrant

Can be made in exceptional circumstances; only in cases which are provided under Art.50 & 51 of z crp.c

Flagrant offences :

Cr.pr.Code Art 19-21 and 50 define flagrant offences and declare that any person may arrest a flagrant offender.

Art. 19. - Flagrant offences.

(1) An offence shall be deemed to be flagrant where the offender is found committing the offence, attempting to commit the offence or has just committed the offence.

(2) An offence shall be deemed to be quasi-flagrant when, after it has been committed, the offender who has escaped is chased by witnesses or by members of the public or when a hue and cry has been raised.

Art. 20. - Assimilated cases.

An offence shall be deemed to be flagrant and to fall under the provisions of Art. 19 when:

(a) the police are immediately called to the place where the offence has been committed; or

(b) a cry for help has been raised from the place where the offence is being or has been committed.

Art. 21. - Effect as regards setting in motion of proceedings or arrest.

(1) In the case of offences as defined in Art. 19 and 20, proceedings may be instituted without an accusation or complaint being lodged, unless the offence cannot be prosecuted except upon a formal complaint.

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(2) An arrest without warrant may in such cases be made on the conditions laid down in Art. 49 et seq.

Art. 50. - Arrest without warrant in flagrant cases.

Any private person or member of the police may arrest without warrant a person who has committed a flagrant offence as defined in Art. 19 and 20 of this Code, where the offence is punishable with simple imprisonment for not less than three months.

Art. 51. -- Arrest without warrant by the police.

(1) Any member of the police may arrest without warrant any person:

(a) whom he reasonably suspects of having committed or being about to commit an offence punishable with imprisonment for not less than one year;

(b) who is in the act of committing a breach of the peace;

(c) who obstructs a member of the police while in the execution of his duties or who has escaped or attempted to escape from lawful custody;

(d) who has evaded or is reasonably suspected of having evaded police supervision;

(e) who is reasonably suspected of being a deserter from the armed forces

or the police forces;

(f) Who has in his possession without lawful excuse housebreaking implements or weapons;

(g) Who has in his possession without lawful excuse anything which may reasonably be suspected of being stolen or otherwise obtained by the Commission of an offence;

(h) Who may reasonably be suspected of being a dangerous vagrant within the meaning of Art. 471 Penal Code.

(2) Nothing in this Article shall affect the powers of other government officers to make an arrest without warrant under special provisions of other laws.

However, although an illegal arrest does not affect jurisdiction to try an offender, the **exclusionary rule** may affect the trial adversely. The exclusionary rule, as it relates to arrest, states that any evidence obtained by exploitation of an unlawful arrest will be inadmissible in court in a prosecution against the person arrested

A law enforcement officer may be subject to **civil liability** for illegal imprisonment (arrest) or for arrest which is made with excessive or unreasonable force.

Violating the rules pertaining to summons and arrest might result in criminal, civil, and administrative sanctions. Disciplinary measure might also be taken against such person (police)

The setting in motion of the criminal justice may result in the summons or the arrest of the suspect. However, this does not mean that whenever the police receive information about the commission of a crime, they should summon or arrest the suspect. Before proceeding to summons or arrest, the police have to make sure that there is a prima facie case against the suspect. The police must have reasonable grounds to resort to summons or as the case may be to arrest.

The two commonly used mechanisms for bringing the suspect to the police station are summons and arrest. The effect of the two is the same. But, the means utilized in both cases is completely different. Summons is a peaceful system of taking a person into custody. On the contrary, arrest involves force.

Arrest might be with a warrant or without a warrant. In principle, it should be done with court order (warrant). But, in exceptional justifiable circumstances, it is legal to resort to arrest without a warrant. The clearest case is flagrant offense. Arrest without warrant should also be applied for

certain justifiable cases (Art.51), Private persons are also entitled to make arrest without warrant in such circumstances.

In case of flagrant offenses, the criminal proceeding is made faster and trial could start forthwith. The procedure is called “next day justice” in Britannia and “real time dispatch” in France. In Ethiopia, the procedure had been limited to the Christian religious ceremony at *Qulibi Gebriel* by establishing temporary police, prosecution and court to speedily handle flagrant offenses. Now, beginning from the eve of Ethiopian Millennium in Addis Ababa, different specialized benches entertaining flagrant offenses have been set up. The regions have also started applying the system. Practice has proved that pleading guilty is the norm. Now, it is even possible to have a criminal case decided on the very date of the crime committed using the real time dispatch technique.

Police Investigation

Art. 16-21, 26, 32 FDRE Cons, 12, 22-31, Cr Pr C. & Art 420, 424, Cr.C.

The police have to give attention for both the **means** and the **end** of the criminal justice system. Investigation is required to substantiate the information pertaining to the commission of crime. The police have to undertake interrogation to the suspect as well as witnesses; gather real evidence, such as exhibit, finger print, etc. In the process, the police have to refrain from illegal activities leading to the rebuttal of the evidence in court. It has to avoid the use of the “third degree” method of investigation to elicit information from the suspect and witnesses. Otherwise, the fate of evidence collected violating the rights of persons might be rejection. In addition, the police could face administrative, civil, and criminal sanctions.

Unless the witness is expert, it is wrong to take the mere opinion of a witness.

Art. 27. - Interrogation.

(1) Any person summoned under Art. 25 or arrested under Art. 26, 50 or 51 shaH, after his identity and address have been established, be asked to answer the accusation or complaint made against him.
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(2) He shall not be compelled to answer and shaD be informed that he has the right not to answer and tfiat any statement he may make may be used in

evidence.

Confession

Art 18-19, FDRE Cons, Art 27, 34 and 35, Cr Pr C, Art 424, CC

The Right to Remain Silent

- **Art.19 (2) FDRE cons.**
- The status of the right to silence in **England** has been altered. Previously, the accused could not be required to incriminate him-or herself, and silence could not be taken to infer guilt. But since passage of the act, it is possible for **guilt to be inferred by silence**, and so there is pressure on the accused to waive the right to silence when being questioned by police...
- Yet, the right to remain silent is at the heart of common law criminal procedure.
- “No person...shall be compelled in any criminal case to be witness against himself...”
USA. Thus the states must prove its case without the help of the accused if the accused chooses not to give that help.

The exclusionary rule is not limited to evidence that is the direct product of illegal police behavior, such as a coerced confession or the items seized as a result of an illegal search. The rule also requires exclusion of evidence that is obtained indirectly when one's constitutional rights are violated. This type of evidence is sometimes called derivative evidence or secondary evidence.

Current Issues: Involuntary Confessions and Art 35, CPC

Art. 35. - Power of court to record statements and confessions.

- (1) Any court may record any statement or confession made to it at any time Before the opening of a preliminary inquiry or trial.
- (2) No court shall record any such statement or confession unless, upon questioning the person making it, it ascertains that such person voluntarily makes such statement or confession. A note to this effect shall be made on the record.
- (3) Such statement or confession shall be recorded in writing and in full by the court and shall thereafter be read over to the person making the statement or Confession, who shall sign and date it. The statement shall then be signed by the president or the court.
- (4) A copy of

the record shall then be sent to the court before which the case is to be inquired into or tried, and to the public prosecutor."

In many cases convictions are based upon confessions given by the accused to the police while in their custody. And, in many cases, the accused repudiates his confession at trial, claiming it was the result of coercion, while the police in truth insist it was not.

An accused's confession of guilt which has been procured through physical violence, psychological intimidation, or improper inducements or promises is inadmissible evidences.

The CPC states quite clearly that "no police officer or person in authority shall offer or use or make or cause to be offered, made or used any inducement, threat, promise or any other improper method to any person examined by the police."

Miranda v. Arizona

...

The warning of the right to remain silent must be accompanied by the explanation that anything said can and will be used against the individual in court. This warning is needed in order to make him aware not only of the privilege, but also of the consequences of forgoing it. It is only through an awareness of these consequences that there can be any assurance of real understanding and intelligent exercise of the privilege...

A person **must be warned** prior to any questioning that he has **the right to remain silent**, that **anything he says can be used against him in a court of law**, that he has **the right to the presence of an attorney**, and that **if he cannot afford** an attorney one will be appointed for him prior to any questioning if he so desires. Opportunity to exercise these rights must be afforded to him throughout the interrogation. After such warnings have been given, and such opportunity afforded him, the individual may knowingly and intelligently waive these rights and agree to answer questions or make a statement. But unless and until such warnings and waiver are demonstrated by the prosecution at trial, no evidence obtained as a result of interrogation can be used against him.

No. 759. Miranda v. Arizona.

On March 13, 1963, petitioner, Ernesto Miranda, was arrested at his home and taken in custody to a Phoenix police station. He was there identified by the complaining witness. The police then

took him to "Interrogation Room No. 2" of the detective bureau. There he was questioned by two police officers. The officers admitted at trial that Miranda was not advised that he had a right to have an attorney present. Two hours later, the officers emerged from the interrogation room with a written confession signed by Miranda. At the top of the statement was a typed paragraph stating that the confession was made voluntarily, without threats or promises of immunity and "with full knowledge of my legal rights, understanding any statement I make may be used against me."

At his trial before a jury, the written confession was admitted into evidence over the objection of defense counsel, and the officers testified to the prior oral confession made by Miranda during the interrogation. Miranda was found guilty of kidnapping and rape. He was sentenced to 20 to 30 years' imprisonment on each count, the sentences to run concurrently. On appeal, the Supreme Court of Arizona held that Miranda's constitutional rights were not violated in obtaining the confession and affirmed the conviction. 98 Ariz. 18, 401 P. 2d 721. In reaching its decision, the court emphasized heavily the fact that Miranda did not specifically request counsel.

We reverse. From the testimony of the officers and by the admission of respondent, it is clear that Miranda was not in any way apprised of his right to consult with an attorney and to have one present during the interrogation, nor was his right not to be compelled to incriminate himself effectively protected in any other manner. Without these warnings the statements were inadmissible. The mere fact that he signed a statement which contained a typed-in clause stating that he had "full knowledge" of his "legal rights" does not approach the knowing and intelligent waiver required to relinquish constitutional rights...

Therefore, in accordance with the foregoing, the judgments of the Supreme Court of Arizona in No. 759... reversed...

Summary

One of the most controversial procedures during investigation is interrogation of the suspect. The person interrogated has the privilege against self-incrimination. However, the scope of this right is not a settled issue.

In Ethiopia, the issue of confession is much more debatable. This is due to the recognition by the CPC of confession made to the police and the court without clarifying the effects of the one given to the police. The FDRE Constitution clearly outlaws any evidence acquired through coercion. This categorical approach of the Constitution raises the question of its scope. The scope of this protection is not clear. But, it is possible to limit it to confession or admission acquired through the medium of communication. It does not seem applicable to real evidences like blood test, photographing, etc.

- . Is the right to counsel guaranteed under the FDRE Constitution during investigation?
- . Does the ruling in *Miranda v. Arizona* apply to the Ethiopian criminal justice system? Why or why not?
- . Who should prove that a confession or admission is obtained without coercion?
- . Can one challenge a confession given pursuant to Art 35 of the CrPrC to another court during trial?

Search and Seizure

Art 26 (right to Privacy) FDRE Constitution

Art 32-33, CrPr, 422, Cr.C

Art. 32. - Searches and seizures.

Any investigating police officer or member of the police may make searches or seizures in accordance with the provisions which follow:

(1) No **arrested person** shall be searched except where it is reasonably suspected that he has about his person any articles which may be material as evidence in respect of the offence with which he is accused or is suspected to have committed. A search shall be made by a person of the same sex as the arrested person.

(2) No **premises** may be searched unless the police officer or member of the police is in possession of a search warrant in the form prescribed in the Third Schedule to this Code except where:

(a) an offender is followed in hot pursuit and enters premises or disposes of articles the subject matter of an offence in premises;

(b) information is given to an investigating police officer or member of the police that there is reasonable cause for suspecting that articles which may be material as evidence in respect of an offence in respect of which an accusation or complaint has been made under Art. 14 of this Code and the offence is punishable with more than three years imprisonment,

are concealed or lodged in any place and he has good grounds for believing that by reason of the delay in obtaining a search warrant such articles are likely to be removed.

4r1. 33. - *Issue of search warrant.*

0) A search warrant may be issued by any court. No search warrant shall be issued unless the court is satisfied that the purposes of justice or of any inquiry, trial or other proceedings under this Code will be served by the issue of such warrant.

(2) Every search warrant issued shall specify the property to be searched for and seized and no investigating police officer or member of the police may seize any property other than that specified in such warrant.

(3) On seizing any property such investigating police officer or member of the police shall make a list of the property seized and where possible shall have the list checked and signed by an independent person. Any property seized which is required for the trial shall be preserved in a safe place until handed over to the court as an exhibit. Any property not so required may be returned to the person from whom it was taken and a receipt shall be taken.

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(4) In effecting a search the investigating police officer or member of the police may use such force as is necessary and may where access to premises is denied use reasonable force to effect entry.

(5) Unless otherwise expressly ordered by the Court, searches shall be carried out only between the hours of 6 A.M. and 6 P.M.

Like the case of arrest, search and seizure have to be undertaken only by the order of the court (search warrant). The mere existence of a court order is not enough to guarantee the legality of search and seizure. It has to be also executed properly. But, exceptionally search and seizure in certain justified circumstances may conduct without search warrant.

In our country, the rules governing search and seizure are scanty (inadequate). Unlike the case of forced confession, the FDRE Constitution does not contain rules making inadmissible illegal search and seizure. The Constitution devotes one third of its part to the protection of human rights. Given the value attached to the cause of human rights, it seems justified to seriously scrutinize and reject illegally obtained evidence. Otherwise, the protection of human rights becomes exposed to risk. This might discourage the police from resorting to illegal means to secure legal end. The end should not justify the means. The police should also be liable administratively, civilly as well as criminally.

The scope of the search; because “nothing is left to the discretion of the officer executing the warrant,” police may only search the premises described in the warrant and may only search for the items listed in the warrant.

Possible effect of an illegal search and seizure

- **Inadmissibility of z evidence**
- The civil or criminal liability of the officer conducting the search and seizure.

CHAPTER THREE

POST ARREST PROCEDURES

After the arrest of a person, the major procedures are

- ✚ Appearance before court, within 48 hrs.(Art.19(3) z cons) (first, the court has to ascertain the legality of the arrest.)
- ✚ Bail (Art.19(6) z cons, Art.63-79 cr.pr.c)
- ✚ remand (Art.29,59 & 60-62 cr.pr.c)and
- ✚ Habeas corpus (Art.19(4) z cons).

There is a possibility for the individual detained to be released by the police or taken to court within the limit of time set by the law. The court may either permit or deny the bail question and order remand. Appeal lies from such a decision. In case a person is detained unlawfully, one may request habeas corpus.

Remand

Art 19-21, FDRE Cons

Art 29, 59-62, Cr Pr C

Art. 29. - Procedure after arrest.

(1) Where the accused has been arrested by the police or a private person and handed over to the police (Art. 58), the police shall bring him before the nearest court within forty eight hours of his arrest or so soon thereafter as local circumstances and communications permit. The time taken in the journey to the court shall not be included.

(2) The court before which the accused is brought may make any order it thinks fit in accordance with the provisions of Art. 59.

Art. 30.

Art. 59. - Detention.

(1) The court before which the arrested person is brought (Art. 29) shall decide

whether such person shall be kept in custody or be released on bail.

(2) Where the police, investigation is not completed the investigating police officer may apply for a remand for a sufficient time to enable the investigation to be completed.

(3) A remand may be granted in writing. No remand shall be granted for more than **fourteen days on each occasion.**

Remand

Art. 60. - Conditions of remand.

Any arrested person shall be detained on the conditions prescribed by the law relating to prisons.

Art. 61. - Detained persons right to consult his advocate!

Any person detained on arrest or on remand shall be permitted forthwith to call and interview his advocate and shall, if he so requests, be provided with the means to write.

Art. 62. - Finding of sureties.

Any person on remand who may be released on bail shall be given the opportunity to find sureties.

Release on Bail

Persons accused, convicted or under arrest for an offence may be granted bail, which means they are released under a duty to attend court or the police station at a given time.

Art 17, 19-21, FDRE Constitution

Art 28, 59-79, Cr Pr C

There is a general presumption in favour of bail for unconvicted defendants, but there are some important exceptions. Bail need not be granted where there are substantial grounds for believing that, unless kept in custody, the accused would fail to surrender to bail, or would commit an offence, interfere with witnesses or otherwise obstruct the course of justice. In assessing these risks, the court may take account of the nature and seriousness of the offence and the probable sentence, along with the character, antecedents, associations and community ties of the defendant.

“Persons arrested have the right to be released on bail. Except,...” Art. 19 (6) Z cons.

Bail can be granted subject to conditions, such as bail bond, personal (subjective) characteristics of the arrested person & the type of crime under question.

Cases in which bail is not allowed

✚ Art. 63 & 67 of cr.pr.c and also

- ✚ The courts need not grant bail when the accused should be kept in custody for their own protection
- ✚ The legal provision cited in the charge affects the granting or denial of bail. For instance, **there is no bail for a corruption case entailing more than ten years imprisonment** (Art 4/1, Revised Anti-Corruption Special Procedure and Rules of Evidence Proclamation No. 434/05).

Art. 63. - Principle.

(1) whosoever has been arrested may be released on bail **where the offence with which he is charged does not carry the death penalty or rigorous imprisonment for fifteen years or more and where there is no possibility of the person in respect of whom the offence was committed dying.**

(2) No person shall be released on bail unless he has **entered into a bail bond**, With or without sureties, which, in the opinion of the *Court*, is sufficient to secure 'his attendance at the court when so required appearing.

(3) Nothing in this Article shall affect the provisions of Art. 67.

*Art. 67. - **Bail not allowed***

An application for bail shall not be allowed where:

- The applicant is of such nature that it is unlikely, that he will comply with the conditions laid down in the bail bond;
- The applicant, if set at liberty, is likely to commit other offences;
- The applicant is likely to interfere with witnesses or tamper with the evidence.

Forms of bail

- **Recognizance** — a promise made by the accused to the court that he/she will attend all required judicial proceedings and will not engage in illegal activity or other prohibited conduct as set by the court. Typically a monetary amount is set by the court, but is not paid by the defendant unless the court orders it forfeited; this is denominated an *unsecured appearance bond* or *release on one's own recognizance*.
- **Surety** — when a third party agrees to be responsible for the debt or obligation of the defendant. In many jurisdictions this service is provided commercially by a bail bondsman, where the agent will receive 10% of the bail amount up front and will keep that amount regardless of whether the defendant appears in court. The court in many jurisdictions, especially jurisdictions that prohibit bail bondsmen, may demand a certain amount of the total bail (typically 10%) be given to the court, which, unlike

with bail bondsmen, is returned if the defendant does not violate the conditions of bail. This also known as *surety on the bond*.

- **Conditions of release** - many varied non-monetary conditions and restrictions on liberty can be imposed by a court to ensure that a person released into the community will appear in court and not commit any more crimes. Common examples include: mandatory calls to the police, surrendering passports, home detention, electronic monitoring, drug testing, alcohol counseling and surrendering firearms.
- **Protective order**-also called an **Order of protection**- one very common feature of any conditional release, whether on bail, bond or condition, is a court order requiring the defendant to refrain from criminal activity against the alleged crime victim, or stay away from and have no contact with the alleged crime victim. The former is a *limited* order, the latter a *full* order. Violation of the order can subject the defendant to automatic forfeiture of bail and further fine or imprisonment.
- **Cash** — typically "*cash-only*," where the only form of bail that the Court will accept is cash.
- **Combinations** - courts often allow defendants to post cash bail or bond, and then impose further conditions, as mentioned above, in order to protect the community or ensure attendance.

Bail may be forfeited, and the defendant remanded to jail, for failure to appear when required.

Summary

In principle, every one arrested suspected of a crime has the right to be released upon conditions set. Denial of bail should be an exception. The accepted grounds for denying release are **possibility of absconding, tampering with evidence, commission of other offences, gravity of an offence, etc.** In case a court determines to release the suspect, it has to take into account several factors, such as, the **nature of the offence, social ties of the suspect, and capacity to bring guarantee.** The court could also impose **further conditions** on the released person. Their purpose is to limit the danger of absconding, **for the protection of the suspects themselves**, and danger to the public. This could be prohibition of emigration, going to certain places, not contacting victims, electronic monitoring, etc.

The release of a suspect could take several forms. These include bond, surety, personal recognizance, and cash. **Generally, they can be classified into** monetary and non-monetary.

Release on bail is a conditional undertaking. The suspect or accused has to comply with the terms of the release. One should attend each and every proceeding of a court. Besides, the non-monetary conditions have to be respected. Otherwise, it could result in different financial and non-financial consequences. There may be forfeiture of the amount of money set as a bail. The released person may also be detained as the case may be.

The FDRE Constitution guarantees the right to bail. But, it can be denied on certain circumstances. Therefore, bail **is a constitutional right. It could be limited by law on justifiable grounds.** It takes different forms. Failure to comply with bail obligation could entail civil and criminal liability.

Habeas Corpus

Habeas Corpus is the procedure by which a person illegally detained may obtain release from such detention. It is a civil remedy, although in most cases the person seeking release from custody will have been detained on a charge of committing a criminal offence.

Art 19 and 21, FDRE Constitution

Art 15/2/I, 177-179, Civil Procedure Code

Federal Courts Proclamation No. 25/96 (as amended)

Habeas corpus is a remedy in case government authorities detain a person and fail to bring the arrestee to the nearest court. **It is a civil proceeding.** The person is claiming civil right though detained for matters related to crime. Consequently, the Civil Procedure Code has provisions governing it.

What is the rationale for making habeas corpus a civil case even if a person is detained unlawfully in relation to crime?

An application for habeas corpus comes within the exclusive jurisdiction of the High Court. It may be made by any person who has been restrained otherwise than in pursuance of an order

duly made under the Civil Procedure Code or Criminal procedure Code. It does not matter that the order was made under legal authority; if, in fact, the nature of the restraint or the means by which it was imposed is in violation of the law, the application is proper. The application must be accompanied by an affidavit of the applicant stating the name of the person under whose custody he is, the nature and place of the restraint and the names of any persons who can testify to the facts alleged in the application. If the person restrained is unable to make the application himself, e.g., if he is restrained in a remote area or is prevented by his custodian from making the application, the application may be made by any person on his behalf; in such cases, the application must state the name of the person restrained and that he is unable to make the application and/or affidavit himself.

On receiving the application, the High Court immediately issues a summons directing the person having custody over the restrained person to appear before the court together with the person restrained on day to be fixed in the summons and to show cause why the restrained person should not be released. The court will also issue a summons for the appearance of any person who may be able to testify to the facts alleged in the application. On the day of the hearing, the court investigates the truth of the allegations and may make such orders with regard to evidence as it thinks fit. The sole question before the court is **whether the restraint is unlawful**. If it concludes that the restraint is unlawful, it must order the immediate release of the person in custody, and the custodian must immediately release him notwithstanding any orders or instructions to the contrary.

CHAPTER FOUR

PROSECUTION AND PRELIMINARY INQUIRY

Prosecution

Pls yeneye read Art 37-48, 122, CPC

After the police, it is up to the public prosecutor to scrutinize the police investigation file to determine the presence of sufficient evidence to prove guilt. The prosecution office should not

rush to frame charge. The available evidence has to be evaluated. If there are points not clarified, a further investigation has to be ordered.

In Ethiopia, the decision to prosecute or not has now been left to the public prosecution office based on requirements of law

there is no law clearly empowering the public prosecutor to drop charges. Art 122 of the Cr Pr C has been repealed by Proclamation No. 39/93. Art 23/3 of Proclamation No. 471/2005 allows withdrawal based on a law. It implies that there is another law defining the conditions necessary to terminate the prosecution. There is up to now no law allowing that. But, this law permits automatic interruption of a criminal investigation for due cause. Once a charge is filed, it does not seem legal to drop charges. Art 16/2/b/2 of Proclamation No. 587/2008 also contains similar provisions regarding interruption of criminal investigation and charges pertaining to revenues and customs related offences.

The case of upon complaint cases is different. It is the absolute right of the victim to decide the fate of the case until a judgment is entered.

The Preliminary Inquiry

Article 80-93, Cr Pr C

One of the essential events in the criminal justice process is the preliminary hearing. It is the procedure for hearing evidence before charge or trial. It has various functions such as filtering, discovery, basis for future impeachment, and preservation of testimonial evidence.

The Cr Pr C also recognizes this procedure. Its main purpose is **preservation of evidence**. Other purposes can also be inferred from the provisions of the law. But, it is not a screening mechanism used by the courts found in other jurisdictions. **The criminal bench entertaining a preliminary hearing cannot have a say in deciding whether there is sufficient evidence against the suspect.** In fact, the primary responsibility of the court is notifying the purpose of the preliminary hearing to the suspect at the earliest possible opportunity before starting taking

evidence. So, the preliminary hearing is undertaken for various purposes. In our country, its functions are limited.

CHAPTER FIVE

THE CHARGE

After the public prosecutor decided that there is sufficient evidence to warrant conviction, the next step is preparation of a charge/indictment. The charge has to fulfill **technical and legal requirements** to facilitate the trial process.

Framing the Charge: Form and Content

Relevant Laws

Art 108-122 and Second Schedule of the Cr Pr C

Art 20 (Rights of persons accused) FDRE Constitution

*Art. 111. - **Contents and form of the charge.***

(1) Every charge shall be dated and signed and shall contain:

(a) the name of the accused; and

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(b) the offence with which the accused is charged and its legal and material ingredients; and

(c) the time and place of the offence and, where appropriate, the person against whom or the property in respect of which the offence was committed; and

(d) the law and article of the law against which the offence is said to have been committed.

(2) The charge shall be in the form set out in the Second Schedule to this Code or shall conform thereto as nearly as may be.

*Art. 112.- **Description of circumstances.***

Each charge shall describe the offence and its circumstances so as to enable the accused to know exactly what charge he has to answer. Such description shall follow as closely as may be the words of the law creating the offence.

The provisions relating to “charges” are intended to provide that the “charge” shall give the accused full notice of the offence charged against him. Thus, framing a charge is a requirement

of due process of law. After the preparation of the charge, the suspect becomes an accused. A charge should be precise. But, it should not be general. It must explain with reasonable clarity the alleged offence with its particulars.

A charge could contain several counts against a single accused in the case of concurrent crimes. But, one count should be restricted to the case of violation of an independent offence. It is also possible to charge several persons at a time in case there is a link between them with the alleged crime. A court could order separate trial whenever justice requires it.

It is also possible to convict a person for an offence not mentioned in the indictment, with z fulfillment of certain requirements.

There is a possibility of Conviction of a Crime Different from that Charged Art. 113(2),115 cr.pr.c

Joinder of Offences against asingle offender & also joinder of offenders on a certain crime can be made on a charge;refer z code.

Joinder of Parties

Where several persons have participated in a single offense or a serious of related offenses z law grants the prosecutor discretion to prosecute them jointly or separately.

Joinder of Offenses

A defendant's action in the course of a single criminal episode may result in several violations of the law.

The FDRE Constitution has guaranteed for the accused persons to be informed of criminal charges in writing. The CPC, too, has provisions dealing with the charge. But it lacks the necessary detail and some clarity. Unlike the Civil Procedure Code, the CPC does not authorize the registrar and court to enforce the formal and legal requirement of a charge. It seems prudent to assume the power. But, the registrar should be limited to checking technicality. For instance, the registrar can order correction or reject a charge not mentioning a criminal law violated. It does not have the mandate to evaluate the appropriateness of a law cited. In case no criminal law is stated, it becomes a technical matter.

The prosecution has to frame and file a criminal charge within 15 days. The absence of a clear sanction has the effect of disregarding it.

Like many other jurisdictions, the Cr Pr C separately treats the charge and evidence brought to substantiate or refute it. Art 124 of the CPC imposes a duty on both parties to make sure that evidence is ready for trial. Other jurisdictions adopt a pre-trial conference system to facilitate the exchange of evidence between the parties. Pre-trial discovery is a reciprocal duty. The CPC does not also have the procedure before full scale trial, i.e., arraignment. It is used to ascertain pleading of guilty or not and make the necessary preparation for the trial. Had the CPC had the arraignment stage, it could have been used for sharing of evidence between the parties. There should not be surprise during the trial. Everyone has to be ready knowing the charge and the kind and identities of evidence to be confronted. Art 94/2/e requires adjournment in case any evidence unexpected by either party is produced. Taking by surprise is not allowed.

Forced by the absence of a clear provision regulating pre-trial discovery in the CPC, the practice of stating and attaching evidence to a charge has developed. The need for exchange of information between the parties is out of question. Now, the situation is completely changed. The charge and evidence submitted to court and given to the accused are similar.

The mode of production and exchange of criminal evidence is not well addressed under z cr.pr.c. In practice, evidence is made part of the charge. There is also variation as regards the levels of details of the evidence included in the charge.

Amendment of Charge

Art 118-119, CPC

amendment of a charge is possible at any time before judgment. But, the purpose for which the amendment allowed is not clear under the Cr Pr C. It seems to prohibit amending the charge to cite a more severe penal provision.

“...amendment of a charge cannot be made to the disadvantage of the accused. Amending the charge to cite a more severe penal provision is prejudicial to the interest of the accused. It is not allowed to amend the charge from less grave criminal provision to a more severe one...”

z supreme court in its Appellate jurisdiction.

Is it possible to correct minor mistakes of the charge, such as name, and type errors without the need to frame a new charge?

CHAPTER SIX

THE FEDERAL SYSTEM AND JURISDICTION OF COURTS

The appointment of jurisdiction over offences between the federal and state courts is dependant up on some factors. In principle federal courts have jurisdiction over offences based on three major grounds:

- a. law,
- b. Parties to the case, and
- c. Places of commission

Federal Courts Proclamation No. 25/96 and 322/2003 sets out the rules for allocation of common and specific jurisdictions to federal courts on the basis of three grounds; laws, parties and places.

On the other hand, the law lists down specific cases which fall within the **exclusive jurisdiction** of federal courts.

Apart from these apportionments of jurisdiction among the federal and state courts, there is a **delegation of power** because of the fact that we do not have yet established federal courts all over the country.

Jurisdiction has three elements:

- Judicial
- Material, and
- Local

A court is said to have jurisdiction over a particular offence only when it has the judicial, material and local jurisdiction of adjudication.

Judicial jurisdiction is all about whether Ethiopian courts have power to see and then adjudicate a case or not

Art 11-20 of the Cr.C are devoted to issues of judicial jurisdiction of Ethiopian courts over offences.

Material jurisdiction is concerned with the level of courts, and the type of court that should hear the case. Thus, the issue of material jurisdiction should be seen the light of structure of courts. The next point once after the determination of the issue of judicial jurisdiction is whether the case at hand is under federal or state jurisdiction.

CHAPTER SEVEN

THE TRIAL

(Art.123 & z ff)

Often the following are mentioned as rights of the accused:

- * Right to speedy trial
- *Right to public trial
- *Right to counsel or legal assistance
- *Right to obtain a copy of the charge
- *Right to be presumed innocent
- *Prohibition of self incrimination

Plea of accused

Once after a charge has been read out and explained by the presiding judge, the latter shall also ask the accused whether he pleads guilty or not guilty, i.e. whether he admits or denies the charge.

Plea of not guilty shall be entered where:

- the accused denies the charge or
- admits the same with reservation or
- if the accused says nothing in answer to the charge (silence)

Plea of guilty-admission shall be entered only where the accused admits the charge without reservation either by stating the offence in its terms or by admitting every ingredients of the offence charged.

The court may not accept the plea of guilty or delay its acceptance, if justice so requires.

As being discussed above after the accused pleads not guilty, it is obvious that the next process is that the prosecutor be ordered to produce evidence, oral witnesses in particular because he is alleged a commission /omission/ of a crime the burden of proof lies on him. However, if the accused pleads guilty and it has been recorded by the court, the prosecutor shall be asked his opinion which normally be demanding the court to convict the accused forthwith. The court may

on its own discretion either convict the accused forthwith or demand the prosecutor to produce evidence and corroborate the plea.

In the course of proceeding after the court entered the plea of guilty of the accused, the court may amend the plea on its own motion or upon the application of the accused pursuant to Art 135 of the CPC. The court may then change the plea to one of not guilty. Where a plea of guilty had been entered following which the suspect had been convicted, sub article 2 of Art 135 provides that the conviction shall be set aside.

Art 141 of the CPC reads:

When the case for the prosecution is conducted, the court
if it finds that no case against the accused has been made
out which, if unrebutted, would warrant, his conviction,
shall record an order of acquittal.

Thus, once after the court examine the evidences and measured its weight shall decide whether the case is proved to the extent of the required degree against the accused or not. If the court is not convinced that the case is sufficiently proved, it shall acquit the accused without requiring him to defend himself and enter an order of release of the accused if he is in custody pursuant to Art 141 of the CPC.

Case for Prosecution; Where the case is not dispensed pursuant to the above discussion, i.e. Art 141, in other words, if the court is satisfied with evidences produced and is convinced that the accused had committed the alleged crime unless rebutted by the evidences to be produced by him it shall require him to produce all possible evidences he has to defend himself. Art.142

CHAPTER EIGHT

SPECIAL PROCEDURES LEADING TO JUDGMENT

1. Private Prosecutions

2. Default Proceedings; Art. 160 ff. *trial in absentia/default proceeding is possible, with z fulfillment of z ff critarias;*

- offences which are either punishable with rigorous imprisonment for not less than twelve years or
- offences that are provided for under Art 354-365 Of the PC (Offences against the fiscal and economic interest of the state), which are punishable with rigorous imprisonment of fine exceeding five thousand birr.
- then, default judgment possible if only the accused is not young person.

Art 197-202 of the CPC provides the possibility of making an application to set aside judgment made in default where the accused has been convicted in his absence and now appears and make an application with good cause for his non appearance. Such application is made to the rendition court within thirty days from the date on which the applicant became aware of the judgment given in his absence. Where the applicant is aware and is not able to file an application within those thirty days, his advocate may file the application and the applicant may have afterwards a sufficient time to appear before the court as his personal presence. Obviously, such application should be based on a reason (s) and the law under Art 198 of the CPC recognizes only two reasons. These are:

- i. the accused has not received summons to appear ; or
- ii. the accused has received the summons but prevented by force majeure from appearing in person or by advocate.

If the court accepts the reason and grant the setting aside of the judgment, it shall order the retrial of the case and the public prosecutor institutes a charge before the pertinent court. The decision of the court on the application is final

3. Summary Proceedings: Petty Offences and Contempt

Contraventions are minor crimes. Pursuant to Art 735 of the CC, contraventions are violation of administrative regulations or the rules of the CC relating to petty offences. They may entail loss of liberty or payment of fine. But, the arrest ordered is not comparable to that of normal crime. It is undertaken in a detention center for that purpose. The penalty ranges from one day to three months.

The CPC regulates its enforcement. For petty offenses, the law follows a simplified procedure. For example one may not be supposed to go to court. It is possible to send a document certifying guilt. The court should not call upon the accused unless it intends to impose arrest. The proceeding can be held orally. Thus, the law wants to simplify the procedure for contraventions.

With regard to court contempt, unlike the civil procedure code, the CPC does not have provisions regulating it. However, court contempt can happen in a criminal court. The CC has procedural provisions regulating the summary handling of such cases. So, a criminal bench can use the provisions of the CC in case any person commits court contempt in the process of adjudication.

4. Juvenile Procedures

In many countries, there is what we call juvenile court which is a special court designed to see cases in which young persons /juveniles are parties.

Coming to the existing Ethiopian laws, we find chapter ten of the CPC that deals about procedures concerning young persons. Thus, issues concerning complaint and accusation, arrest, investigation, charge, plea, trial, judgment, sentence and appeal are dealt and supposed to be governed pursuant to provisions listed therein.

5. Corruption Crimes

Revised Anti-Corruption Special Procedure and Rules of Evidence Proclamation No. 434/2005
Art 402-419 of the CrC

Separate rules are enacted to regulate the arrest, investigation, search and seizure, bail, injunction, restraining order, remand, prosecution, trial, evidence, standard of proof, confiscation, appeal, etc of corruption crimes.

There are two modes of handling the trial. These are **the ordinary criminal procedure** approach and the **special procedure designed** for conducting trial for corruption offences. The choice is dependent upon the complexity of the matter. The purpose of the special procedure is to facilitate the process, easy understanding of the matter and clarification of issues. For complex matters, there will be **pre-trial hearing**. At this stage, there will be mainly exchange of evidence as well as ruling on the admissibility of evidence and issue of law. There could be appeal on the rulings made. The elements to be proved and the standard of proof are also different from other criminal cases. The law also protects prosecution witnesses from possible attack. It tries to encourage whistle blowing.

CHAPTER NINE

POST JUDGMENT PROCEEDINGS

Review of judgement by:

- ❖ **Rendition court**
- ❖ **Applate court**
- ❖ **Cassession crt**

Execution

Pardon & Amnesty